--SUMMARY--

Decision No. 250/18 **17-Apr-2018** **T.Mitchinson - E.Tracey - C.Salama**

- Negligence
- Transfer of costs

A worker for a company that provided nursing services slipped and fell in a parking lot on January 22, 2013. The Board granted the worker entitlement for her injuries. The employer appealed a decision of the Appeals Resolution Officer denying transfer of the costs of the claim to the company that owned the parking lot and/or the company that the owner contracted with to clear ice and snow from the lot.

The Panel found that neither the parking lot owner nor the snow removal company was negligent.

The obligation of the parking lot owner was to negotiate a snow removal contract that reasonably ensured the safety of the property for use by tenants and visitors during the winter season. The Panel found that the owner took reasonable steps in setting up arrangements with the snow removal company, as evidenced by the terms of the contract and understandings between the two companies regarding implementation of the various duties set out in the contract. The owner was not negligent. Thus, there was no basis to transfer any costs of the claim to the owner of the parking lot.

The policies set up by the snow removal company in order to implement its various obligations under the contract were sufficient to ensure a reasonable expectation of public safety on the site. Further, the actual steps taken by the snow removal company on the day of the accident were reasonable efforts to implement those policies. There was evidence that the company had used salt or grit at the location that day, which was appropriate for the conditions. The snow removal company was not negligent. Thus, there was no basis to transfer any costs of the claim to the snow removal company.

The appeal was dismissed.

11 Pages

References: Act Citation
- WSIA 84

Other Case Reference
- [w2518s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Document No. 14-05-01
- TRIBUNAL DECISIONS CONSIDERED: 129/11 consd

Style of Cause:
Neutral Citation: 2018 ONWSIAT 1279

WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 250/18

BEFORE:	T. Mitchinson : Vice-Chair E. Tracey : Member Representative of Employers C. Salama : Member Representative of Workers
HEARING:	January 25, 2018 at Ottawa Oral
DATE OF DECISION:	April 17, 2018
NEUTRAL CITATION:	2018 ONWSIAT 1279
DECISION(S) UNDER APPEAL:	WSIB ARO decision dated November 25, 2015

APPEARANCES:

For the employer:	M. Senicar, Paralegal
For the respondents:	N. LeBlanc, (Company A)
	T. Brown, Lawyer (Company B)
Interpreter:	N/A

Workplace Safety and Insurance Appeals Tribunal

505 University Avenue 7th Floor
Toronto ON M5G 2P2

Tribunal d'appel de la sécurité professionnelle et de l'assurance contre les accidents du travail

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REASONS

(i) Introduction

[1] This appeal was heard in Ottawa on January 25, 2018. The employer appeals the November 25, 2015 decision of Appeals Resolution Officer (ARO) D.M. Shepherd. The ARO denied the employer's request to have the costs of the worker's claim transferred to one or both of two respondent companies.

[2] The employer was represented at the hearing by Marc Senicar, a paralegal. Nadine LeBlanc, a company official, appeared on behalf of respondent, Company A. Tess Brown, a lawyer, represented the other respondent, Company B.

[3] The worker testified at the hearing by teleconference. Ms. LeBlanc provided testimony on behalf of Company A, and company official, Tony Mancini, testified for Company B. Mr. Senicar, Ms. LeBlanc and Ms. Brown all made submissions on behalf of their clients.

(ii) Applicable law

[4] The workplace injury in this case occurred in 2013. Therefore, the *Workplace Safety and Insurance Act* (the Act) applies.

(iii) The issue on appeal

[5] The only issue in this appeal is whether the costs of the worker's claim should be transferred from the employer to one or both of Company A and Company B.

(iv) Background

[6] On January 22, 2013, the worker slipped and fell after leaving her place of employment and while walking towards her car in the workplace parking lot. She worked for the employer, a nursing services provider, at the time of the accident. The parking lot was owned by Company B, who had contracted with Company A to manage snow and ice removal in the parking lot and on the sidewalks outside various commercial and retail businesses located at the property.

[7] The worker filed a claim with the Workplace Safety and Insurance Board (the Board), which was approved for injury to her right hand, wrist and thumb.

[8] The employer maintained that the accident and associated injury occurred due to Company A's failure to properly clear ice and snow from the property, and asked that the claim costs be transferred to Company A.

[9] A Board Adjuster reviewed the request, and denied the transfer on the basis that Company A met the required standard of care and took reasonable and prudent measures to keep the property safe.

[10] The Adjuster's decision was upheld by ARO Shepherd in her November 25, 2015 ruling. The ARO also found that the contract entered into by Company A and Company B for snow and ice removal services reflected reasonable and prudent actions by Company B to ensure the safety of their tenants, employees and clients.

(v) The employer's position

[11] The worker testified by teleconference. She stated that she began work for the employer as a home visit nurse in 2011. Most of her job duties took place outside the office location, and she generally would only go to the office either to pick up paperwork or attend meetings. The worker confirmed that the employer's office is located on the second floor of a 2-story building that houses a number of businesses and retail companies. The office is accessed from a single location, through one access door at street level. There is a sidewalk dividing the entrance door from the paved parking lot, which is approximately 8-10 feet wide. There are 2 steps down from the sidewalk to the parking lot surface, and approximately 15 feet from the sidewalk to the cars that are parked in a single line along the length of the property.

[12] The worker recalled that she was at the office on January 22, 2013, and left to go home at approximately 5:00-5:30 pm. It was an extremely cold day and dark by the time the worker left the office. She testified that she was not carrying a cell phone or other materials, and was wearing winter clogs and not boots. She crossed the sidewalk and immediately slipped and fell when she stepped onto the parking lot pavement. The worker recalled that her initial reaction was one of embarrassment, and she got up quickly and continued walking to her car. She testified that she noticed that the parking lot had many slushy ruts that had frozen over and was glad that she hadn't fallen on any of the ruts. When she got to her car she noticed that she couldn't grasp the fob to start the vehicle, so she used her cell phone to call her manager, who came out to the car and helped her walk back into the office. The manager used either a flash light or her cell phone to light up the pavement, and the two of them identified the area where the worker fell. According to the worker, there was ice on this area and no salt. However, she could see evidence of sand under the ice.

[13] On cross questioning by Ms. LeBlanc, the worker testified that there was no other exit to the office building and no safety rail at the exit. The worker clarified that she observed grit under the ice, and assumed that it was an old deposit because there was no grit on the icy surface where she fell. The worker also confirmed that the sidewalk area was lit, but not the parking lot, and that there was a roof area above the sidewalk. She was not aware if water collected on the roof and could have dripped down onto the sidewalk surface.

[14] Ms. Brown also questioned the worker. The worker testified that the office receptionist told her that she had also fallen on the sidewalk. The worker assumed that the ice patch she fell on would have extended along the sidewalk, but it was dark at the time so she couldn't see whether that was the case.

[15] Mr. Senicar takes the position that Company A was negligent in not meeting its contractual and common law obligations to maintain the property in a safe manner. He accepts that the standard of care is not perfection, and that it is not reasonable to expect that every trace of snow and ice would be removed in winter. However, he submits that the actions of Company A on the relevant dates in January 2013 were not adequate to ensure that the property was properly maintained, and the deficiencies are sufficient to establish negligence, as that term is defined in common law and by Board policy.

[16] In particular, Mr. Senicar submits that, even though Company A and Company B had a contract for snow and ice removal, and Company A had a program in place to implement its obligations under that contract, Company A failed to take reasonable steps to inspect and address conditions predictably stemming from a "thaw and refreezing" episode in January 2013. He

points out that no records of inspection on January 22, 2013 have been provided. Mr. Senicar references and relies on written submissions provided by the employer's previous representative in the context of ARO Shepherd's hearing. They state:

> In the present appeal, the Daily Weather Reports submitted indicate that the conditions reflect a sudden thaw and refreeze situation which is known and accepted by the Courts to cause very hazardous icy conditions. The records from [Company A] indicate that only once in 2 days did anyone show up at site, and for only ½ an hour in the early hours of January 22 to "salt" which would have no effect at the temperatures recorded. [Company A] had the responsibility to monitor the conditions and inspect the area and to be proactive to render the area safe with sand.
>
> The icy conditions described by the witnesses and which caused the accident, would have existed for almost two days before the accident. There was no additional snowfall or freezing rain in the interim to add to the accumulation of slush or black ice. And only sand could have remediated the hazard yet no sand was distributed.
>
> By the standards of Ontario Courts, in a thaw with refreeze situation, where a snow removal company responsible to monitor and address ice hazards in a high traffic area, fails for almost 2 days to properly remediate an ice hazard resulting in personal injury, this constitutes negligence if not gross negligence.

[17] Mr. Senicar submits that, regardless of whether the contract and program put in place by Company A are sufficient to address the snow and ice removal hazard, the program must be adhered to in order to meet the required standard of care. In his view, Company A failed to adequately inspect the property following the refreeze, and thereby neglected to identify the need for sand rather than salt in order to address the conditions on that day. This failure, in Mr. Senicar's view, constitutes negligence. The earlier written submissions state:

> … Again, while [Company A] has claimed that it had a system of daily inspection, there is no evidence that any inspection took place. There is no evidence documenting any inspection. There is no evidence of a daily inspection schedule. And the obvious hazard could not have been missed if the area had been inspected over the two days of the refreeze.

[18] The submissions also continue:

> The … contract properly emphasized the importance of addressing the high traffic entrances and roadway and places a duty on [Company A] to maintain safe conditions within prescribed time limits. [Company A] lists its resources but has not provided any policy that defines how high traffic areas are addressed, how to deal with frozen slush from a refreeze after plowing and there is no indication that there is any flexibility to deal with thaw/refreeze conditions or that they are even recognized.

[19] The written submissions conclude:

> The policy and program of [Company A] did not meet a reasonable standard of supervision or maintenance. The program described was not adhered to in any event such that the hazard was allowed to continue unabated. The snow and ice removal program and policies were inadequate to alleviate the danger. The company provided minimal service that did not and could not address the icy hazard from a thaw/refreeze.

(vi) Company A's position

[20] Nadine LeBlanc (LeBlanc), a company official, provided testimony on behalf of Company A.

[21] LeBlanc stated that Company A has been in existence since 1971 and currently has a crew of 12 individuals and approximately 120 snow maintenance and removal contracts in the Ottawa area. The company has been under contract with Company B since 2004, and the Company B location is serviced by a dedicated 4-person crew who have 15 years of service with Company A.

[22] LeBlanc went on to testify that Company A staff keep detailed log books of activities at the various contract locations, including the Company B location, and the site is provided with 14 salt boxes that can be used by either Company A staff or Company B building managers or tenants. LeBlanc also explained that there is a backhoe operator who removes snow when it accumulates, and plows that clear the parking lot whenever there is more than 2.5 centimeters of accumulation.

[23] LeBlanc testified that there had been significant weather fluctuations in January 2013, with the temperature falling from approximately 5 degrees on January 20 to under -20 degrees by January 21. As a result, snow from an earlier storm had melted and then refroze, and once the temperature dropped below -12 degrees, salt would no longer melt the ice. At that point the parking lot and sidewalks areas were treated with grit, a combination of salt and sand.

[24] LeBlanc pointed to log books contained in the case materials, which outline the inspections done by the Company A owner during the January 20-23 period, as well as crew logs confirming services provided over this period. She acknowledges that there is no inspection report for January 22, the day of the workplace accident, but that the crew logs confirm that service was provided in accordance with contract obligations.

[25] LeBlanc explained that grit does not melt ice, but creates friction on the ice surface that helps to prevent slipping. It is well recognized that there are no available products to melt ice in extreme cold, and Company A used sanding trucks with automatic propellers to distribute grit over the parking lot and sidewalks at the Company B location once the temperature dropped below -12 degrees.

[26] LeBlanc points out that Company A has an extensive track record of providing professional snow services to commercial and residential locations in the Ottawa area, with a staff of long term employees and required equipment. It provides training to its employees on an annual basis, including instructions on how to complete and remit log books.

[27] LeBlanc states that Company A has been under contract with Company A since 2004, and has never received any complaints from the owner, property manager or tenants. LeBlanc believes this is a true indication that the company services the location with care and due diligence.

[28] Company A submitted log books covering the January 2013 period, and in written submissions provided in the context of ARO Shepard’s hearing, LeBlanc stated:

> It is our opinion that the attached [log books] provides proof that our company was not negligent in our services as defined in WSIB policy. It also provides evidence that our company has rendered the services as indicated and required by the signed agreement.

[29] LeBlanc submits that the snow removal contract presumes that Company A will exercise professional judgment in determining the required levels of surveillance, and that it will treat the property with the proper products depending on weather conditions. She acknowledges that the inspection report for January 22, 2013 is missing, but points to crew log entries for that date

which confirm that the property was treated with grit in the early morning hours immediately before the workplace accident. Grit does not melt ice, but it is the industry standard for extreme cold, and, in Ms. LeBlanc's view, the evidence establishes that Company A took reasonable steps to deal with surface conditions during the thaw-refreeze conditions at the property in January 2013.

[30] LeBlanc also refers to photographs of the property location taken on January 23, 2013. Although they do not show the condition of the property at the time of the workplace accident on January 22, LeBlanc points out that there was no additional snowfall between January 22 and 23, and that the photograph of the sidewalk on the 23rd , showing a clear surface, would likely be an accurate reflection of the condition the day before.

(vii) Company B's position

[31] Tony Mancini (Mancini) provided testimony on behalf of Company B. He is senior official with the company, and has an office located at the property.

[32] Mancini testified that the contract with Company A sets out snow accumulation levels that trigger the need to plow the parking lot, but that Company A has discretion to determine what inspection levels are required in order to ensure that adequate service levels are provided under the contract. According to Mancini, it is up to Company A to determine when to apply salt and when to apply grit. On occasion, he will contact Company A to come to the location, but generally relies on their judgement. According to Mancini, he does not receive copies of Company A's log books, and does not feel that this is necessary.

[33] Mr. Senicar referred Mancini to an email exchange with the employer's staff identifying previous falls by staff outside the building entrance. Mancini pointed out that he asked his building manager to salt the area when he received this information, and that it was not necessary to advice Company A in the circumstances or to review the terms of the contact in light of the falls.

[34] Under cross questioning by Ms. LeBlanc, Mancini testified that Company B has been very pleased with services provided by Company A over the years, and that Company A applies due diligence and adequate inspection at the property. He relies on Company B's property management staff during daytime hours to provide surveillance on behalf of the owner, and to use the salt boxes to treat sidewalk areas.

[35] Ms. Brown takes the position that by entering into the comprehensive agreement with Company A for snow clearing services, Company B took reasonable and prudent steps to carefully manage the accumulating of ice and snow in the parking lot and sidewalks during the winter.

[36] In addition, given its longstanding good relationship with Company A, and Company A's reputation in the community, it was reasonable for Company B to rely on Company A to discharge its contractual obligations properly and on a timely basis, including weather monitoring and inspection and decisions on when to use salt and grit.

[37] Ms. Brown also points out that at common law an owner who retains an independent contractor to do work is not liable to others for the negligence of that contactor, unless the work being performed is dangerous in nature. The work undertaken by Company A under the terms of

the agreement is not dangerous. In Ms. Brown's view, if any costs should be transferred from the employer to a third party, it should not involve Company B:

> … for the simple reason that it had retained [Company A] to perform that work and [Company A] agreed [under the terms of the contract] to indemnity Company B for any negligence on their part that gave rise to personal injury.

(viii) Analysis and findings

[38] Section 84 of the Act permits the transfer of costs from a Schedule 1 employer to another Schedule 1 employer, if that second employer is found to have either caused or contributed to a particular work accident. It reads as follows:

> In a case where subsection 28 (1) applies and the Board is satisfied that the accident giving rise to the worker's injury was caused by the negligence of some other employer in Schedule 1 or that other employer's workers, the Board may direct that the benefits, or a proportion of them, in that case be charged against the class or group to which the other employer belongs and to the accident cost record of the other employer.

[39] Board *Operational Policy Manual* (OPM) Document No. 14-05-01 sets out policy and guidelines for interpreting section 84. It reads, in part, as follows:

> **Policy**
>
> If negligence is determined and claims costs have already been charged to the accident employer, all or part of these costs are transferred from the accident employer's cost record to the negligent employer's cost record.
>
> …
>
> **Proof of negligence**
>
> If the evidence indicates that it is more likely than not that the other Schedule 1 employer was negligent, the WSIB determines the degree of negligence. As a result, the WSIB may transfer all or part of the claim costs to the negligent employer...

[40] Tribunal *Decision No. 129/11* provides a helpful overview of the common law of negligence as well as the Tribunal's approach to dealing with the issue:

> As has been discussed in many Tribunal decisions, the common law of negligence is what is applied in the analysis of the facts. One useful definition of "negligence" is found in the *Canadian Law Dictionary*, by John Yogis, Q.C., Professor of Law at Dalhousie University. The *Canadian Law Dictionary* defines negligence as follows:
>
> > Negligence is the omitting to do something that a reasonable man would do or the doing something which a reasonable man would not do… It is really the absence of such care as it was the duty of the defendant to use. The care taken by a prudent man has always been the rule laid down – a regard to caution such a man of ordinary prudence would observe [as cited from the 1942 decision of *Bishop versus McDonald*].
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> Tribunal *Decision No. 1694/07* also set out the Tribunal's approach to the common law of negligence, in part as follows:
>
> > It is also clear that it is the common law of negligence that must be applied in this analysis. Tribunal *Decision No. 432/00* discusses the legal test followed in this analysis:
> >
> > > The approach does not differ significantly from the approach taken by the courts and followed by previous Panels of the Tribunal. The decision-makers first determine whether or not an inference may be made, on the balance of

> probabilities, that the second employer was negligent. If the inference is made, resulting in a prima facie case of negligence, the second employer must rebut it with an alternative explanation of how the accident may have occurred without negligence on the second employer's part. This was the approach taken by the Court in the *Fontaine* case.

> The elements of the tort of negligence, as set out in a number of Tribunal decisions (e.g. *Decision Nos. 17/89, 602/91, 276/92, 893/92, 857/97, 2137/99*) are as follows:
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> (a) There must be a relationship between the parties (i.e., between the injured worker and the second employer) creating a duty to exercise reasonable care.
>
> (b) The duty must be breached. That is, the conduct of the second employer must have fallen below the required standard of care.
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> (c) The worker must have suffered damage (i.e., injury) and the injury must have been caused by the second employer's failure to conform to the standard of care.
>
> (d) The damage must not be too remote.

[41] This appeal turns on the question of whether Company A and/or Company B were negligent in addressing snow removal and related obligations at the Company B property in January 2013. On the evidence, the Panel finds that negligence has not been established.

[42] Dealing first with Company B, this company's obligation is to negotiate a snow removal contract that reasonably ensures that the property will be safe for use by tenants and visitors during the winter season.

[43] The contract between Company A and Company B is included in the case materials. It addresses what can accurately be described as the various typical aspects of snow removal services, including surveillance and inspection, plowing, use of salt and grit to treat ice accumulation, a timetable for providing services following a snowfall or ice conditions, as well as repairs caused by use of Company B's equipment. The contract imposes an obligation on Company A to complete work in "a good and workmanlike manner, with due diligence and efficiency", and to comply with all government standards. The contract also goes on to set out Company A's insurance requirements, and concludes by stating:

> The Contractor [Company A] releases the Owner [Company B] and any mortgagee or other entity that provides funding for all of or any part of the Property and their respective officers, employees and agents (all of which are referred to collectively as the "Releases") from every claim which the Contractor might have or acquire in connections with the Work being performed by it at the Property , including without limitation, any claims arising from personal injury or damage, loss or theft to property regardless of how it arises or is caused and the Contractor indemnifies the Releases from and against every loss, cost or expense arising from or connected with the Contractors carrying out the Work at the Property, including without limitation, all claims arising from personal injury or damage, loss or theft of property regardless of how it arises or is caused.

[44] It is clear from the language used in the contract that the parties intended to absolve Company B of any responsibility for damages or claims stemming from the various duties performed by Company A on the property. As both Ms. Leblanc and Mr. Mancini testified, Company A was responsible for exercising sound professional judgment in determining appropriate surveillance and inspection protocols, and the Panel finds that it was reasonable for Company B to defer to Company A in this regard, particularly in light of Company A's longstanding history of success in addressing snow removal requirements over several years.

[45] The Panel finds that Company B took reasonable steps in setting up arrangements with Company A for snow removal services, as evidenced by the terms of the contract and understandings reached with Company A regarding implementation of the various duties set out therein. Company B was not negligent, and there is no basis for transferring any costs in this case from the employer to Company B.

[46] As far as Company A is concerned, Mr. Senicar does not focus on deficiencies in the terms of the snow removal contract. Rather, he takes the position that the policies and program set up by Company A to implement the contract, particularly the surveillance and inspection requirements, did not meet the required standard of care set out by the courts and Board policy.

[47] There is no dispute that the case record does not include any documentation relating to inspections of the property on the day of the worker's injury. Inspection reports for the day before and the day after the injury are included, but not the actual day, January 22, 2013. Ms. LeBlanc was unable to provide any explanation for this. However, she pointed out that the log report from employees performing actual job duties on January 22, 2013 is included, and provides confirmation that the property was serviced on that date. The specific log book entry for January 22 states that "salting services" were provided at 3:22 am. In the Panel's view, this is sufficient evidence to confirm that services were provided, despite the absence of any inspection report for January 22, 2013.

[48] Although the log book entry uses the term "salting services", Ms. LeBlanc was clear that it was actually grit rather than salt that was used on the property on January 22, 2013. She explained that it is common knowledge in the industry that salt is not effective in melting ice when temperatures fall below -12 degrees, and weather reports for the date in question confirm temperatures in the -20 degree range. In our view, Company A is a large snow removal company with a lengthy track record of providing services in the Ottawa area, and it reasonable to assume that on-site staff would have used grit rather than salt on January 22, 2013, given the temperature on that date. It is also noteworthy that the log report for January 21, 2013, the day before the accident, specifically states that "salt/grit" was used when treating properties that day.

[49] As Ms. LeBlanc explained, grit does not melt salt. It simply introduces friction on the ice surface that reduces the risk of slipping or sliding when walked or on driven over by pedestrians and vehicles. According to Ms. LeBlanc, there is no product that melts ice at temperatures below -12 degrees, and that grit is recognized by the industry as the best available treatment in these circumstances.

[50] On the evidence, the Panel finds that the policies set up by Company A in order to implement its various obligations set out in the contract with Company B were sufficient to ensure a reasonable expectation of public safety at the property site. We also find that the steps taken by Company A during the January 20-23, 2013 period constituted reasonable efforts to implement these policies. Although there would appear to be no inspection report for January 22, 2013, there are reports from January 20, 21 and 23, which indicate the need to administer "salt/grit" at the property location. Given that there were no new or different weather conditions on January 22, it is reasonable to infer that regardless of whether an inspection took place on that date, the need for "salt/grit" would have been the same, consistent with the log book entry indicating that these materials were used to treat the property on January 22.

[51] Having carefully considered all relevant evidence, as well as the testimony and submissions provided by the three representatives, the Panel finds that neither Company A nor

Company B was “negligent” in dealing with weather conditions at the property on January 22, 2013, as that term is defined by the courts, the Board, and Tribunal jurisprudence. As such, there is no basis for transferring costs from the employer to either of these companies under OPM Document No. 14-05-01, and the employer’s appeal is dismissed.

DISPOSITION

[52] The appeal is dismissed.

DATED: April 17, 2018

SIGNED: T. Mitchinson, E. Tracey, C. Salama